

25STLC09554 25STLC09554

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-25

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Case Number: 25STLC09554 Hearing Date: August 25, 2026 Dept: 26

TENTATIVE RULING:

Defendants Joel Bauer, Cheryl Bauer, and Joel Bauer and Associates Inc.'s Motion for Judgment on the Pleadings is granted without leave to amend.

Defendants are to file a proposed judgment in accordance with this ruling within 20 days.

Analysis:

Plaintiff Elena Berman ("Plaintiff"), in propria persona, filed the instant action against Defendants Joel Bauer ("Defendant Joel"), Cheryl Bauer ("Defendant Cheryl"), and Joel Bauer and Associates Inc. ("Defendant JB") on December 29, 2025. Defendants filed their Answer on March 3, 2026.

Defendants filed the instant Motion for Judgment on the Pleadings on April 29, 2026, together with Request for Judicial Notice. On June 12, 2026, Defendants filed a Motion for Order Requiring Plaintiff to Furnish Security as a Vexatious Litigant; in relation to this Motion, Defendants filed a Notice of Automatic Stay on June 24, 2026. In light of the stay, on July 1, 2026, the Court placed Plaintiff's discovery motions scheduled for July 1, 2026 and July 16, 2026, and the Motion for Judgment on the Pleadings scheduled for July 28, 2026, off calendar and to be rescheduled after the lifting of the stay. (Minute Order, 07/01/26.)

The Court denied Defendants' Motion for Order Requiring Plaintiff to Furnish Security as a Vexatious Litigant on July 28, 2026 and

reset the instant Motion for Judgment on the Pleadings on August 25, 2026. (Minute Order, 07/28/26.) Defendants filed a Supplemental Request for Judicial Notice on July 29, 2026. Plaintiff filed an opposition to the instant Motion on August 12, 2026 and Defendants replied on August 18, 2026.

Discussion

Defendants move for judgment on the pleadings on the grounds that Plaintiff seeks to relitigate the same claims previously litigated and decided in LASC Case No. 25CHSC01034 ("the Small Claims Action"). Defendants argue that Plaintiff is barred from this re-litigation by the doctrine of res judicata because the Small Claims Court entered judgment in favor of Defendants, and denied Plaintiff's appeal of the same. The Court takes judicial notice of the records in the Small Claims Action pursuant to Evidence Code section 452, subdivision (d). (See Request for Judicial Notice, 04/29/2026, Exhs. A-C; Supp. Request for Judicial Notice, 07/29/2026, Exh. D.)

Legal Standard

The standard for a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. That is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321-322, citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216.) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (Id.) The motion may not be supported by extrinsic evidence. (Barker v. Hull (1987) 191 Cal.App.3d 221, 236.)

A statutory motion for judgment on the pleadings brought pursuant to Code of Civil Procedure section 438, et seq. must be accompanied by a meet and confer declaration. (Code Civ. Proc., § 439 [moving party must file declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion

for judgment on the pleadings is filed[.]) The Motion is supported by a meet and confer declaration. (Motion, Hodgson Decl., ¶¶3-6 and Exh. 1-3.) Finally, a statutory motion may be granted with or without leave to file an amended pleading. (Code Civ. Proc., § 438, subd. (h)(1).)

Discussion

Defendants seek judgment on the pleadings on the basis of res judicata, or claim preclusion. “ ‘Res judicata, or claim preclusion, prevents relitigation of the same cause of action in a second suit between the same parties or parties in privity with them.’ ” (Colombo v. Kinkle, Rodiger & Spriggs (2019) 35 Cal.App.5th 407, 416 [citing Planning & Conservation League v. Castaic Lake Water Agency (2009) 180 Cal.App.4th 210, 226].) The elements of claim preclusion are: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding. (Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 797.) A “cause of action” for claim-preclusion purposes is “simply the plaintiff’s right to be free from the particular injury suffered.” Mycogen Corp. v. Monsanto Co., 28 Cal. 4th 888, 904 (2002). The primary right theory “is invoked ... when a plaintiff attempts to divide a primary right and enforce it in two suits.” (Id.) Claim preclusion prevents a plaintiff from seeking to vindicate the same primary right in successive suits. These principles apply to small claims actions. (See Pitzen v. Superior Ct., (2004) 120 Cal. App. 4th 1374, 1382 [citing Allstate Ins. Co. v. Mel Rapton, Inc. (2000) 77 Cal.App.4th 901, 905].)

In the Small Claims Action, Plaintiff sought \$9,000.00 in damages for Defendants’ alleged failure to honor a guarantee or promise, and because Defendants failed to issue a refund. (Motion, RJN, Exh. A.) The Small Claims Action was tried on October 9, 2025, after which the Small Claims Court entered judgment for Defendants. (Id. at Exh. B.) On December 2, 2025, the Small Claims Court denied a Request for Court Order and Answer that Plaintiff filed on November 7, 2025, asking for a hearing. (Id. at Exhs. C-D.) The Request for Court Order—Motion to Vacate (Cancel) Judgment—was brought on the grounds that Plaintiff did not have a fair chance to review or object, based on surprise / late disclosure of new evidence. (Id. at Exh. D.) The Request for Court Order was denied without a hearing. (Id. at Exh. C.)

Defendants contend that in this action Plaintiff seeks to relitigate the validity of the determination made in the Small Claims Action. The Court agrees.

The Complaint in this action asserts causes of action for fraud, intentional misrepresentation, and unfair business practices, premised on the same alleged injury at issue in the Small Claims Action. Plaintiff again alleges that Defendants promised a full refund, plus \$1,000.00 if Plaintiff did not receive value from their mentoring and training programs. (Compl., ¶¶11-12.) Plaintiff allegedly spent \$8,000.00 on the programs, but was unable to use them; Defendants refused to provide Plaintiff with support or to honor the refund. (Id. at ¶¶14-15.) These facts are the premise of each of Plaintiff's causes of action against Defendants. (Id. at ¶¶19-33.)

Attempting to distinguish the cases, Plaintiff characterizes this case as one for fraud and the Small Claims Action as involving a simple demand for a refund. Specifically, Plaintiff contends that this action asserts fraud, intentional misrepresentation, false advertising under Business and Professions Code section 17500, and unfair business practices under Business and Professions Code section 17200 based on Plaintiff's primary right not to be deceived and induced into a transaction through material misrepresentations. (Opp., p. 6:11-15.) Plaintiff's characterization does not make claim preclusion any less applicable. The allegations in the Complaint are premised on the same conduct by Defendants raised in the Small Claims Action and the same harm suffered by Plaintiff. (See Compl., ¶18.) In both cases, Plaintiff seeks to recover \$9,000.00 based on the \$8,000.00 she paid and the \$1,000.00 refund. (Motion, RJN, Exh. A; Compl., ¶34.) It does not matter that the Complaint in this action also seeks additional damages, as well as punitive damages. (Id. at ¶¶34-35 Seeking additional damages based upon the same injury in different actions does not avoid the restrictions of claim preclusion.

That exception would be a very easy means to swallow the rule. Plaintiff's opposition cites no authority for her contrary position. (Opp., pp. 6:20-7:2.) To the extent Plaintiff argues that she should not be precluded from seeking damages unavailable in small claims court (see Opp., pp.6-7), that was Plaintiff's choice when she elected to bring a small claims action. She is bound by the consequences of her own choice of forum. (See Pitzen, 120 Cal. App. 4th at 1386 ("[S]uch a plaintiff, having chosen to litigate in an informal setting by bringing an action in small claims court, cannot cite the informality of that forum to gain a second chance to litigate a previously decided issue in a

related matter.”).

Plaintiff contends

that she could not have earlier raised certain facts regarding Defendants’ fraudulent representations because she only learned of the facts during “the small claims litigation in 2025.” (See

Opp., p.7.) The Complaint makes a single

vague reference to” facts [that] came to light” in “late 2025, “revealing that Defendants’ representations regarding risk-free participation and refund guarantees were false.” (Compl., ¶18.) Pleading new facts in support of the same

primary right does not negate claim preclusion. (See *Eichman v. Fotomat Corp.* (1983) 147 Cal. App. 3d 1170, 1174 (“[I]f

two actions involve the same injury to the plaintiff and the same wrong by the defendant then the same primary right is at stake even if in the second suit the plaintiff pleads different theories of recovery, seeks different forms of relief and/or adds new facts supporting recovery.”) An allegation that the information was fraudulently concealed does not change that result. (Id. (“a judgment does not lose its res judicata effect because it was entered while evidence was being suppressed.”))

The inclusion of Doe defendants in the instant action is

likewise not relevant to the question of claim preclusion under the primary rights theory. Plaintiff cites no authority to support the argument that all parties in both actions must be identical or in privity. (Opp., p. 5:16-19.)

Rather, “the party against whom the doctrine is being asserted [must have been] a party or in privity with a party to the prior proceeding.” (Boeken, 48 Cal.4th at 797. That requirement is met here; Plaintiff is the same party in both actions. It would make little sense to allow a losing plaintiff to sue the same party on the same claims twice just because the second action added Doe defendants. This action as currently pleaded is an attempt by Plaintiff to relitigate the claims she raised in the Small Claims action.

Plaintiff also argues that there was no final judgment in

the Small Claims Action because she never appealed the judgment, and instead

brought a Motion to Vacate as to which the Court held no hearing. This is not an accurate analysis. As Defendants explain in their Reply, under Code of Civil Procedure

section 116.710, a small claims plaintiff has no right to appeal an adverse judgment. (Code Civ. Proc., § 116.710,

subd. (a).) Only a plaintiff who did not appear at the hearing may file a

motion to vacate the judgment. (Code Civ. Proc., § 116.710, subd. (a).) Consistent with this, the Order in the Small

Claims Action advised both parties that Judgment was entered in that case on

10/9/2025, and that Plaintiff, as the losing claimant, had no right of appeal. (See Mot., RJN, Exh. B, p. 1, p. 2, ¶1.) Plaintiff had no statutory right to file a

motion to vacate because she appeared for the trial. (See Code Civ. Proc., §116.720(a).) The small claims court's denial of her motion

to vacate does not make the judgment entered on October 9, 2025 against

Plaintiff any less final.

Based on the

foregoing, Defendants have demonstrated the existence of a final judgment

regarding the same primary right Plaintiff seeks to adjudicate in this action.

Under the doctrine of claim preclusion, the Small Claims judgment bars the

Complaint in this action, entitling Defendants to judgment on the

Complaint.

Defendants in reply

ask the Court to grant judgment on the pleadings without leave to amend. This is appropriate. Plaintiff's Opposition does not evince an

intention to do anything other re-litigate the matters decided in the Small

Claims Action.

Conclusion

Defendants Joel Bauer, Cheryl Bauer, and Joel Bauer and

Associates Inc.'s Motion for Judgment on the Pleadings is granted without leave

to amend.

Defendants are to file a proposed judgment in accordance

with this ruling within 20 days.

Moving Party to give notice.